

Award
FINRA Dispute Resolution Services

In the Matter of the Arbitration Between:

Claimant

Robert J. Tobin

Case Number: 25-00624

vs.

Respondent

Charles Schwab & Co., Inc.

Hearing Site: Chicago, Illinois

Awards are rendered by independent arbitrators who are chosen by the parties to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Associated Person vs. Member

The evidentiary hearing was conducted by videoconference.

REPRESENTATION OF PARTIES

Claimant Robert J. Tobin (“Claimant”) appeared pro se.

For Respondent Charles Schwab & Co., Inc. (“Respondent”): Christopher F. Robertson, Esq., Seyfarth Shaw LLP, Boston, Massachusetts and Emily C. Kesler, Esq., Seyfarth Shaw LLP, Chicago, Illinois.

CASE INFORMATION

Statement of Claim filed on or about: March 26, 2025.

Amended Statement of Claim filed on or about: June 17, 2025.

Claimant signed the Submission Agreement: March 26, 2025.

Statement of Answer filed on or about: May 20, 2025.

Respondent signed the Submission Agreement: May 19, 2025.

CASE SUMMARY

In the Statement of Claim, as amended, Claimant asserted the following causes of action: bias and slander. The causes of action related to Claimant’s allegation that he was threatened by Respondent with either resigning or being discharged with a negative Form U5 being filed with FINRA. Claimant alleged that the Form U5 filed by Respondent, as part of registration records maintained by the Central Registration Depository (“CRD”), is defamatory in nature.

Unless specifically admitted in the Statement of Answer, Respondent denied the allegations made in the Statement of Claim and asserted various affirmative defenses.

RELIEF REQUESTED

In the Statement of Claim, as amended, Claimant requested expungement of the Form U5 filed by Respondent, a letter of recommendation, payment of any or all forum fees, \$50.00 in actual monetary damages, and any further relief that the Arbitrator may deem just and proper.

In the Statement of Answer, Respondent requested that Claimant take nothing by any of his claims; that Claimant be assessed all arbitration fees and costs; and such other relief to which it is justly entitled.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrator acknowledges having read the pleadings and other materials filed by the parties.

On June 17, 2025, Claimant filed a Motion for Leave to File Amended Statement of Claim ("Motion to Amend Statement of Claim"), to which no response was filed. In an Order dated August 20, 2025, the Arbitrator granted the Motion to Amend Statement of Claim.

AWARD

After considering the pleadings, the testimony and evidence presented at the hearing, and any post-hearing submissions, the Arbitrator has decided in full and final resolution of the issues submitted for determination as follows:

1. The Arbitrator recommends the expungement of the Reason for Termination and Termination Explanation in Section 3 of Robert J. Tobin's (CRD Number 2358663) Form U5 filed by Charles Schwab & Co., Inc. (CRD Number 5393) on May 22, 2024, and maintained by the CRD. The Reason for Termination shall be changed to "Voluntary" and the Termination Explanation should be deleted in its entirety and shall appear blank. This directive shall apply to all references to the Reason for Termination and Termination Explanation.

The Arbitrator recommends expungement based on the defamatory nature of the information. The above recommendations are made with the understanding that the registration records are not automatically amended. Robert J. Tobin must forward a copy of this Award to FINRA's Credentialing, Registration, Education and Disclosure Department for review.

2. Any and all claims for relief not specifically addressed herein, are denied.

FEES

Pursuant to the Code of Arbitration Procedure, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services assessed a filing fee* for each claim:

Initial Claim Filing Fee	= \$	50.00
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**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm(s) that employed the associated person(s) at the time of the event(s) giving rise to the dispute. Accordingly, as a party, Respondent is assessed the following:

Member Surcharge	= \$	165.00
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Hearing Session Fees and Assessments

The Arbitrator has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrator, including a pre-hearing conference with the Arbitrator, which lasts four (4) hours or less. Fees associated with these proceedings are:

Two (2) pre-hearing sessions @ \$50.00/session	= \$	100.00
Pre-Hearing Conferences: July 23, 2025	1 session	
November 25, 2025	1 session	

Four (4) hearing sessions @ \$50.00/session	= \$	200.00
Hearings: December 2, 2025	2 sessions	
December 3, 2025	2 sessions	

Total Hearing Session Fees	= \$	300.00
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The Arbitrator has assessed the total hearing session fees to Claimant.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATOR

Susanne J. Hollander

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Sole Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Arbitrator's Signature

Susanne J. Hollander

Susanne J. Hollander
Sole Public Arbitrator

12/18/2025

Signature Date

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December 19, 2025

Date of Service (For FINRA Dispute Resolution Services use only)